

24STCV33045 24STCV33045

County: los-angeles

Division: Civil Law and Motion

Department: 513

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Case Number: 24STCV33045 Hearing Date: June 25, 2026 Dept: 513

Superior Court of California

County of Los Angeles – Central District

Department

513

STEWART MARROQUIN

;

Plaintiff,

vs.

DAVE & BUSTER'S, INC.

, et al.;

Defendants.

Case

No.:

24STCV33045

Hearing

Date:

June
25, 2026

Time:

10:00 a.m.

[tentative]

Order RE:

(1)

dEFENDANT

DAVE & BUSTER'S, INC.'S motion TO COMPEL PLAINTIFF STEWaRt MARROQUIN'S
DEPOSITION ANSWERS; REQUEST FOR MONETARY SANCTIONS IN THE AMOUNT OF \$2,620.00

(2)

DEFENDANTS

DAVE & BUSTER'S, INC. AND CHRISTIAN SINGER'S MOTION TO COMPEL FURTHER
RESPONSES TO DEFENDANTS' SPECIAL INTERROGATORIES, SET ONE; REQUEST FOR MONETARY
SANCTIONS OF \$1,800.00

(3)

DEFENDANTS

DAVE & BUSTER'S, INC. AND CHRISTIAN SINGER'S MOTION TO COMPEL FURTHER
RESPONSES TO DEFENDANTS' request for production of documents, SET ONE;
REQUEST FOR MONETARY SANCTIONS OF \$1,800.00

MOVING PARTY: (1) Defendant Dave &
Buster's, Inc.

(2)

& (3) Defendants Dave & Buster's, Inc. and Christian Singer

RESPONDING PARTY: (1), (2), & (3) Plaintiff Stewart Marroquin

(1)

Motion

to Compel Answers at Deposition and Request for Monetary Sanctions

(2)

Motion

to Compel Further Responses to Special Interrogatories, Set One and Request for Monetary Sanctions

(3)

Motion

to Compel Further Responses to Request for Production of Documents, Set One and Request for Monetary Sanctions

The court

considered the moving, opposition, and reply papers filed in connection with these motions.

MOTION

TO COMPEL ANSWERS AT DEPOSITION AND REQUEST FOR MONETARY SANCTIONS

Defendant Dave & Buster's Inc. ("Defendant") moves the court for an order (1) compelling plaintiff Stewart Marroquin's ("Plaintiff") deposition answers and (2) that Plaintiff pay the sum of \$2,620 in sanctions for misuse of the discover process.

The court grants Defendant's motion to compel answers to questions 1, 3, 5-7, and 9 as set forth in Defendant's separate statement, filed May 27, 2025.

The court denies the motion to compel an answer to question 2 because the subject of this question is addressed in question 1.

The court denies the motion to compel an answer to question 4 because Defendant has not shown that Defendant included a request to produce Plaintiff's ID in the notice of deposition.

The court denies the motion to compel an answer to question 8 because Defendant has not cited any authority to support its position that Plaintiff was required to sign any papers during his deposition.

The court grants Defendant's request for monetary sanctions in the amount of \$1,760.00 (\$200/hour x 8.5 hours + \$60 filing fee) against Plaintiff. (Code Civ. Proc., § 2025.480, subd.

(j).)

MOTION

TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES AND REQUEST FOR MONETARY SANCTIONS

Defendants Dave & Buster's, Inc.

and Christian Singer ("Defendants") move the court for an order (1) compelling Plaintiff to provide further responses to Defendants' Special Interrogatories, Set One and (2) awarding monetary sanctions in the amount of \$1,800.00 against Plaintiff.

The court denies Defendants' motion to compel further response to Special Interrogatory no. 1 because the interrogatory seeks information protected by the right to privacy. (Williams v. Superior Court (2017) 3 Cal.5th 531, 552.)

The court grants Defendants' motion to compel further response to Special Interrogatory no. 16 in part, limited to the time period October 1, 2019 to the present.

The court denies Defendants' request for sanctions because, in light of the mixed results of the ruling, the court finds that the circumstances presented would make the imposition of sanctions unjust. (Code Civ. Proc., § 2030.300, subd. (d).)

MOTION

TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS AND REQUEST FOR MONETARY SANCTIONS

Defendants Dave & Buster's, Inc. and Christian Singer

("Defendants") move the court for an order (1) compelling Plaintiff to provide further responses to Defendants' Request for Production of Documents, Set One and (2) awarding monetary sanctions in the amount of \$1,800.00 against Plaintiff.

The court denies Defendants' motion to compel further response to Request for Production no. 15 because the request (1) is overbroad since it includes information and documents that are neither related to the subject

matter involved in this action nor appear reasonably calculated to lead to the discovery of admissible evidence, and (2) seeks documents and information protected by the right to privacy. (Code Civ. Proc., § 2017.010; Williams v. Superior Court (2017) 3 Cal.5th 531, 552.)

The court denies Defendant's request for sanctions because Defendant's motion is denied. (Code Civ. Proc., § 2031.310, subd. (h).)

ORDER

The court grants in part defendant Dave & Buster's, Inc.'s motion to compel answers at deposition and request for monetary sanctions as follows.

The court orders plaintiff Stewart Marroquin to answer, at a deposition to be taken by counsel for defendant Dave & Buster's, Inc., questions 1, 3, 5-7, and 9 set forth in the "Separate Statement in Support of Defendant Dave & Buster's, Inc.'s Motion to Compel Plaintiff Stewart Marroquin's Deposition Answers" filed by defendant Dave & Buster's, Inc. on May 27, 2025, and reasonable follow-up questions within 30 days of service of this order.

The court orders plaintiff Stewart Marroquin to pay monetary sanctions to defendant Dave & Buster's, Inc. in the amount of \$1,760.00 within 30 days of the date of service of this order.

The court grants in part defendants Dave & Buster's, Inc. and Christian Singer's motion to compel further responses to Special Interrogatories, Set One and monetary sanctions as follows.

Pursuant to Code of Civil Procedure section 2030.300, the court orders plaintiff Stewart Marroquin to serve on defendants Dave & Buster's, Inc. further, a full and complete verified answer, without objections, to defendants Dave & Buster's, Inc. and Christian Singer's Special Interrogatory no. 16, which complies with Code of Civil Procedure sections 2030.210-2030.250, within 30 days of the date of service of this order.¿

The court denies defendants Dave
& Buster's, Inc. and Christian Singer's motion to compel further responses
to Request for Production of Documents, Set One and monetary sanctions.

The court orders defendant Dave
& Buster's, Inc. to give notice of this ruling.

IT IS SO ORDERED.

DATED: June 25, 2026

Robert
B. Broadbelt III

Judge
of the Superior Court